

R022841-111623 - Public Records Request

Message History (8)

✉ On 11/20/2023 2:43:20 PM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R022841-111623

Body:

Good afternoon,

Our agency considers anything over 30 minutes as extensive labor per Florida Statute 119.07(4)(d). As the invoice indicates, the first 30 minutes have been waived and it will take approximately 8.5 additional hours to fulfill your request. As stated previously, once payment has been received, we will continue to process your request.

Thank you,
Emiko Sota
Public Records Supervisor

↩ On 11/20/2023 2:06:29 PM, Matthew Davis wrote:

TO: "PASCOCOUNTYSHERIFF Support"[pascocountysheriff@govqa.us]

Florida statutes 119.07(4)(d) is as follows- If the nature or volume of public records requested to be inspected or copied pursuant to this subsection is such as to require extensive use of information technology resources or extensive clerical or supervisory assistance by personnel of the agency involved, or both, the agency may charge, in addition to the actual cost of duplication, a special service charge, which shall be reasonable and shall be based on the cost incurred for such extensive use of information technology resources or the labor cost of the personnel providing the service that is actually incurred by the agency or attributable to the agency for the clerical and supervisory assistance required, or both.

Extensive defined as - "more than usual use" As I'm sure you use the computer on a daily basis and would not be considered "extensive" to your normal day to day employment

Labor cost incurred by the agency as defined as a outsource or subcontractor to be hired to complete the task asked to provide.

Lastly I am requesting PUBLIC RECORDS from PUBLIC SERVANTS whom overhead and paycheck come from my tax dollars. Also the basic function of the Freedom of Information Act is to ensure informed citizens, vital to the functioning of a democratic society.

I'm asking you politely to send me the records I requested so I don't have to file a FOIA report to have these records reviewed by a federal agency and receive the same records threw them. Thank you for your time

Matthew A Davis

On Mon, Nov 20, 2023, 10:43 AM PASCOCOUNTYSHERIFF Support wrote:

 On 11/20/2023 10:43:15 AM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R022841-111623

Body:

Good morning,

Per Florida Statute 119.07(4)(d), we are permitted to charge for the time it will take for us to pull the responsive documents. Our agency is obligated to review any responsive documents for any potential statutory exemptions. The invoice for the requested documents remains. Once payment is received, we will continue processing your request and the responsive documents will be provided. Please let me know if you have any further questions.

Thank you,
Emiko Sota
Public Records Supervisor

 On 11/19/2023 4:24:04 PM, Matthew Davis wrote:

TO: "PASCOCOUNTYSHERIFF Support"[pascocountysheriff@govqa.us]

As no charge has been established by law for providing copies by electronic mail in lieu of photocopying, section 119.07(4)(a)3., Florida Statutes, authorizes "the actual cost of duplication of the public record" to be charged. "Actual cost of duplication" is defined in section 119.011(1), Florida Statutes, to mean "the cost of the material and supplies used to duplicate the public record, but does not include labor cost or overhead cost associated with such duplication." You have not advised me of and I am not aware of any "actual costs of duplication" involved in forwarding copies of electronic mail in lieu of photocopying and the definition does not allow for the imposition of labor costs or associated overhead costs. You can send the public records I requested to this email. Thank you for your time and consideration.

Matthew A Davis

On Thu, Nov 16, 2023, 10:37 AM PASCOCOUNTYSHERIFF Support wrote:

Attachments:

M.Davis_Redacted.pdf

C.Hills_Redacted.pdf

✉ On 11/16/2023 10:37:29 AM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R022841-111623

Body:

RE: PUBLIC RECORDS REQUEST submitted on November 16, 2023, Reference # R022841-111623

Dear Mr Matthew Davis,

The Pasco Sheriff's Office received a public information request from you on November 16, 2023 for the following:

“Request all public records and investigational reports of Matthew Aaron Davis - DOB 01/05/1988 and Christina Renee Hills - DOB 02/05/1988. See attached email request.”

I am contacting you to provide you a good-faith estimate of costs associated with your public records request. Based upon the nature of your request, there are a substantial number of potentially responsive records. Each document will need to be reviewed to determine if it is a public record, if it is responsive, and whether any statutory redactions are required. Our good-faith estimate of the costs associated with this request is \$188.70, please see the invoice for a complete breakdown of costs.

You may pay via the portal with a debit or credit card. If you would like to pay by a cashier's check or money order, please make it payable to the Pasco Sheriff's Office and add the associated Reference # R022841-111623. Upon receipt of the deposit, we will process your request and contact you upon its completion with a final invoice amount, which is based on actual time and/or fees. If it is less than your deposit amount, you will be issued a refund for the difference. If it is more, you will be required to pay the outstanding balance difference before the records will be released to you.

Please let me know if you will accept these estimated costs. If you do not respond to this email within 10 business days after the estimate is sent, your request will be deemed withdrawn, unless you have advised the Pasco Sheriff's Office that you will accept and agree to pay the estimated cost or modify your request in response to the cost estimate.

If you wish to mail in your payment, please mail it directly to the address below and be sure to include the Reference # R022841-111623 on the check or a copy of the estimate.

Pasco Sheriff's Office

Finance Department - GovQA
8700 Citizens Drive
New Port Richey, FL 34654

Please advise how you would like to proceed.

Sincerely,

The Pasco County Sheriff's Office Records Unit

✉ On 11/16/2023 10:24:15 AM, PASCOCOUNTYSHERIFF Support wrote:

Attachments: [INV23-R022841-1.pdf](#)

Subject: INVOICE - PUBLIC RECORDS REQUEST :: R022841-111623

Body:



RE: PUBLIC RECORDS REQUEST of November 16, 2023, Reference # R022841-111623.

Dear Mr Matthew Davis,

Your invoice is ready. Please login to the [Pasco Sheriff's Office Public Records Center](#) to make an online payment.

If you wish to send a cashier's check or money order please make to the Pasco Sheriff's Office, with "Final Payment PRR No. R022841-111623" written in the memo section.

You can also make a check or money order payable to: Pasco Sheriff's Office

ATTN: Finance Department

20101 Central Blvd.

Land O'Lakes, FL 34637

Sincerely,

Elizabeth Pelzer

Public Records Specialist

Public Records Unit

To monitor the progress or update this request please log into the [Public Records Center](#)



✉ On 11/16/2023 9:14:38 AM, PASCOCOUNTYSHERIFF Support wrote:



RE: PUBLIC RECORDS REQUEST of November 16, 2023., Reference # R022841-111623.

Dear Mr Matthew Davis,

The Pasco Sheriff's Office is in receipt of your public information request dated November 16, 2023 for the below records:

"Request all public records and investigational reports of Matthew Aaron Davis - DOB 01/05/1988 and Christina Renee Hills - DOB 02/05/1988. See attached email request."

In order to process your request in a timely manner, please ensure that you respond to all correspondence within 10 business days, or the request will be considered withdrawn. Pursuant to F.S. 119, fees may apply.

Sincerely,

Pasco County Sheriff's Office

 On 11/16/2023 9:14:38 AM, PASCOCOUNTYSHERIFF Support wrote:

Request was created by staff